

Date: 12/16/19

CITY CONTRACT NO. 2985

AMENDMENT NO. 5 TO CITY CONTRACT NO. 2985
BETWEEN THE CITY OF CHEYENNE, AND THE CITY OF CHEYENNE-
LARAMIE COUNTY JOINT POWERS BOARD

1. **Parties.** The parties to this Amendment No. 5 are the City of Cheyenne, a municipal corporation duly organized and existing under the laws of the State of Wyoming, whose principal address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and the City of Cheyenne-Laramie County Joint Powers Board, a statutorily authorized entity organized and existing under the laws of the State of Wyoming, whose address is P.O. Box 2477, Cheyenne, Wyoming 82001 ("JPB").

2. **Purpose of Amendment.** The purpose of this Amendment No. 5 is to amend Paragraph 1, Leased Area, of the original Lease between the parties dated March 9, 1992, to include the following described real property located in Frontier Park:

Lots 2, 3, and 4 of Frontier Park, a subdivision to the City of Cheyenne, consisting of 3.78 acres, situated in portions of Government Lots 1 and 2, NE 1/4 NE 1/4, and the SE 1/4 NE 1/4 of Section 25, Township 14 North, Range 67 West, of the 6th P.M., City of Cheyenne, Laramie County, Wyoming.

3. **Other Terms and Conditions Remain Unchanged.** All other terms and conditions of the original Lease and Amendments thereto remain unchanged and in full force and effect.

4. **Signatures.** In witness whereof, the parties to this Amendment No. 5, through their duly authorized representatives, have executed this Amendment No. 5 on the dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Amendment No. 5.

CITY OF CHEYENNE, WYOMING

Date
(SEAL)
Attest:

Marian J. Orr, Mayor

Kristina F. Jones, City Clerk

CITY OF CHEYENNE-LARAMIE COUNTY
JOINT POWERS BOARD

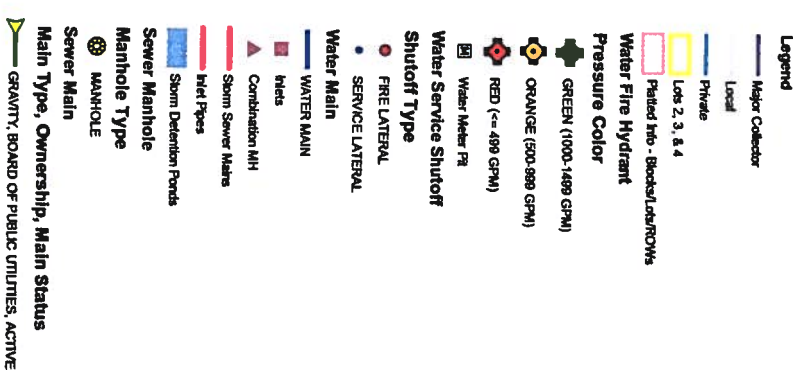
Date

By: _____

Print Name: _____

Title: _____

Lots 2, 3, & 4



User Name: joel
Date: 12/11/2019

THIS LEASE, made and entered into this 9th day of March, 1992 by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, hereinafter referred to as the "Lessor," and the City of Cheyenne, Wyoming - Laramie County Joint Powers Board, hereinafter referred to as "Lessee."

WITNESSETH:

WHEREAS, Lessor has authority under the laws of the State of Wyoming and the ordinances and resolutions of the City of Cheyenne to own real property and to lease such property upon terms and for such purposes as are in the public interest; and

WHEREAS, the Lessee desires to lease certain premises owned by Lessor more fully described in paragraph one below; and

WHEREAS, the Lessor is willing to lease same to Lessee under the terms and conditions hereinafter set forth;

NOW, THEREFORE, for and in consideration of the premises and of the mutual covenants and agreements herein contained, the parties hereto agree as follows:

1. LEASED AREA: The Lessor hereby leases and demises unto the Lessee, and the Lessee hereby hires and takes from the Lessor property described in Exhibit A.

2. TENANT'S ACCEPTANCE OF PROPERTY: Neither the Lessor nor its agents have made any representations with respect to the leased property except as expressly set forth herein and no rights, easements, or licenses are acquired by the Lessee by implication or otherwise except as expressly set forth in the provisions of this lease. The taking of possession of the leased property by the Lessee shall be conclusive evidence that the LESSEE accepts the same "as is" and that the leased property is in good condition at the time possession was taken.

3. TERM: The term of this lease shall commence on the date of execution and end on the 1st day of January, 2092, unless sooner canceled or terminated as hereinafter provided.

4. FEEES: Th Lessee covenants and agrees to pay, and the Lessor reserves as base rent hereunder the sum of ten dollars (\$10.00) payable in full within ten (10) days of commencement of the term hereof to the City Treasurer at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001.

5. ALTERATIONS: Lessee shall inform Lessor of any remodeling or alterations prior to making such improvements.

6. USE OF PREMISES: The Lessee shall have the right and privilege to occupy the demised premises for the purpose of administering the property to promote any activity serving the public interest. Lessee may engage, upon the demised premises, only in those activities which are enumerated herein and no other, without the prior written permission of the Lessor, and Lessee shall use the demised premises for no other or unlawful purposes whatsoever. Lessee shall not commit or permit any nuisance from or upon the leased premises.

7. UTILITIES: Any and all utilities including sanitation, water and sewer required shall be provided by Lessee at Lessee's sole expense except that Lessor may agree to waive or pay any of these charges.

8. ASSIGNMENT AND SUBLETTING: The Lessee shall not assign, transfer, mortgage, pledge or sublet its rights in this lease nor grant any concession hereunder, in whole or in part, without the prior written consent of the Lessor which shall not be unreasonably withheld. The Lessor hereby grants written permission for Lessee to sublet the premises or any portion thereof to Cheyenne Frontier Days, Inc. provided such sublease adequately protects the use of said premises by other organizations such as Laramie County Fair.

9. MINORITY BUSINESS ENTERPRISES: Lessee hereby assures that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this agreement on the grounds of race, color, national origin or sex. Lessee further assures that it will include the language of this paragraph in all subleases and cause all sublessees to similarly include this clause in further subleases.

10. COMPLIANCE WITH LAWS: The Lessee covenants that it will use the demised premises in accordance with all applicable laws and ordinances.

11. PLATTING: Pursuant to WYO. STAT. § 34-12-115, Lessee agrees to bear the cost of platting the demised premises.

12. RIGHT OF INSPECTION: The Lessor reserves and retains for its officers, employees, and authorized representatives the full and unrestricted right to enter the premises for the purpose of inspecting or protecting such premises upon giving reasonable notice to Lessee.

13. CANCELLATION AND TERMINATION: In the event the Lessee shall engage in any activity or practice (except as herein specifically permitted) then the Lessor may order the Lessee to forthwith cease and desist from such activity or practice, and should the Lessee fail or refuse to comply with any such order within thirty (30) days, then the Lessor may at its option cancel and terminate this lease.

14. TAXES, LICENSES, DEBTS: The Lessee covenants and agrees to pay promptly all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by it in connection with its operation of said business on the leased premises, and not permit the same to become delinquent and to suffer no lien, mortgage, judgment or execution to be filed against said property or improvements thereon which will in any way be an impairment to the right of the Lessor under this lease.

15. INDEMNITY: Lessee hereby agrees to defend, hold harmless, and indemnify the Lessor, its officials, employees and authorized volunteers against any and all claims arising during or resulting from the Lessee's performance of this contract, and shall carry contract liability insurance as set forth in Section 16 for all claims excepting those claims which are determined to be the sole negligence of the Lessor, its officials, employees and authorized volunteers.

16. INSURANCE Lessee shall provide Lessor a certificate of insurance naming the City of Cheyenne as an additional insured, effective for the entire term of this agreement in a form approved by the City Risk Manager, which evidences coverage as broad as the following:

(a) Coverage in the sum of two hundred fifty thousand dollars (\$250,000.00) to any claimant for any number of claims arising out of a single transaction or occurrence; and

(b) Coverage in the sum of five hundred thousand dollars (\$500,000.00) for all claims of all claimants arising out of a single transaction or occurrence.

17. WAIVERS: No waiver or default by the Lessee of any of the terms, covenants or conditions hereof to be performed, kept and observed by the Lessee shall be construed as, or operate as, a waiver by the Lessor of any subsequent default of any of the terms, covenants or conditions herein contained to be performed, kept and observed by the Lessee.

18. SURRENDER AND HOLDER OVER: The Lessee covenants that at the expiration of the period for which the demised premises are leased to it, or at the earlier termination of the letting thereof, it will quit and surrender said premises together with fixtures on the property in good state and condition, reasonable wear and tear excepted. Should the Lessee hold over the use of or continue to occupy the demised premises after expiration of the lease, such holding over will be as a tenant at sufferance for which use it shall be liable for any and all damages resulting from such tenancy.

19. QUIET ENJOYMENT: Lessor covenants for itself, its successors and assigns that Lessee, upon payment of the rent and performance of Lessee's other covenants herein, shall and may peaceably and quietly have, hold and enjoy the demised premises during the primary term and any renewal terms thereto.

20. NOTICES: Any notices required or given hereunder shall be given by first class mail, or telegram, addressed to the respective addresses below, or such other address as may be specified in writing from time to time:

LESSOR

City of Cheyenne
City Clerk's Office
2101 O'Neil Avenue
Cheyenne, WY 82001

LESSEE

City of Cheyenne, Wyoming -
Laramie County Joint Powers
Board
P.O. Box 2477
Cheyenne, WY 82003

21. TERMINATION OF LEASE UPON CONDEMNATION - RENT APPORTIONMENT ENTIRE AWARD TO LESSOR: If the leased property, or any part thereof is taken by eminent domain or sold under the threat of the exercise of said power (all of which are herein called "condemnation"), this lease shall expire on the date when the leased property shall be so taken, and the rent shall be apportioned as of that date.

22. OTHER AGREEMENTS:

a) Declaration of Governing Law: This lease shall be governed by, construed, and enforced in accordance with the laws of the State of Wyoming.

b) Plural, Singular, Gender to be Read in Context. Any word contained in the text of this lease shall be read as the singular or the plural and as the masculine, feminine or neuter gender as may be applicable in the particular context.

c) Joint and Several Obligation of Lessee, Partners. If there is more than one party tenant, the covenants of the Lessee shall be the joint and several obligations of each such party, and, if the Lessee is a partnership, the covenants of the Lessee shall be the joint and several obligations of each of the partners and the obligations of the firm.

d) Binding Effect on Parties, Representatives, Successors and Assigns. The provisions of this lease shall be binding on and inure to the benefit of the parties, their legal representatives, successors and permitted assigns.

e) Parties Have Relationship of Landlord and Tenant - Not Principal - Agent, Partners or Joint Venturers. Nothing contained in this lease shall be deemed or construed to create the relationship of principal and agent or of partnership or of

joint venture or of any association whatsoever between Lessor and Lessee, it being expressly understood and agreed that neither the computation of rent nor any other provisions contained in this lease nor any act or acts of the parties hereto shall be deemed to create any relationship between Lessor and Lessee other than the relationship of landlord and tenant.

(f) Captions for Convenience - Not Part of Lease - Not to Limit or Amplify Lease. The captions of this lease are for convenience only, are not a part of the lease, and do not in any way limit or amplify the terms and provisions hereof.

(g) Identification of Leased Premises by Annexed Plan. A plan, if attached, is hereby made a part of this lease, except as otherwise specifically provided, and is to be used solely for the purpose of identifying or designating the leased premises. Any marking, measurements, dimensions or notes of any kind contained therein have no bearing with respect to the terms and conditions of this lease and are not to be considered a part hereof.

(h) Prior Representations Incorporated into Lease - No Representations, Warranties or Promises by Landlord, Agents or Representatives. All negotiations, considerations, representations and understandings between the parties are incorporated in this lease, and Lessee acknowledges that Lessor, its agents and representatives, have made no representations, warranties or promises with respect to the building, the surrounding land, or the leased premises except as may be expressly set forth herein.

(i) Entire Agreement - Modification in Writing, Signed and Delivered by Both Parties. This lease contains all of the agreements and representations between the parties. None of the terms of this lease shall be waived or modified to any extent, except by a written instrument signed and delivered by both parties.

(j) Severability of Invalid or Unenforceable Clause - Remainder of Lease Enforceable - Clause Applicable to Other Persons and Circumstances. If any clause, phrase, provision or portion of this lease or the application thereof to any person or circumstance shall be invalid, or unenforceable under applicable

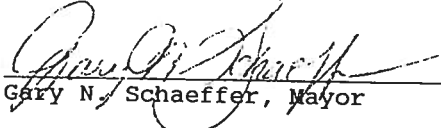
law, such event shall not affect, impair or render invalid or unenforceable the remainder of this lease, nor any other clause, phrase, provision or portion hereof, nor shall it affect the application of any clause, phrase, provision or portion hereof to other persons or circumstances.

23. EMBODIMENT OF AGREEMENT: This agreement contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof.

IN WITNESS WHEREOF, the parties hereto have caused this instrument to be executed as of the day and year first above written.

CITY OF CHEYENNE

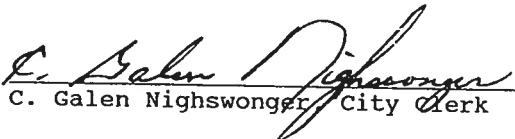
BY:



Gary N. Schaeffer, Mayor

(SEAL)

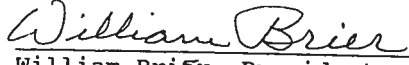
ATTEST:



C. Galen Nighswonger, City Clerk

CITY OF CHEYENNE, WYOMING - LARAMIE
LARAMIE COUNTY JOINT POWERS BOARD

BY:



William Brier, President
wbb

EXHIBIT A

A parcel of land in the Northeast Quarter of Section 25, Township 14 North, Range 67 West of the 6th P.M., Wyoming, lying within the corporate limits of the City of Cheyenne, County of Laramie, and being further described by a metes and bounds as follows:

Beginning at a point which is North 75° 13' 24" West , a distance of 524.11' from the Center Quarter Corner of Section 25, Township 14 North, Range 67 West of the 6th P.M. and South 50° 17' 15" East, a distance of 3567.54' from the City of Cheyenne control point "LAKE": Thence North 26° 56' 41" West, a distance of 2093.75: Thence South 73° 24' 59" West, a distance of 407.01': Thence South 89° 51' 33" West, a distance of 815.01': Thence South 00° 19' 52" West, a distance of 1805.80': Thence South 89° 45' 49" East, a distance of 2129.63': Thence North 27° 36' 40" East, a distance of 74.78' to the point of beginning.

The above described parcel of land contains 72.5 acres, more or less, and is contained in the area commonly referred to as Frontier Park.

The foregoing legal description is intended to describe the demised premises until such time as a plat is prepared for recordation at which time the legal description contained on such plat shall be substituted herein.

Date: 7/16/02

**AMENDMENT NUMBER 1 TO CONTRACT NO. 2985 BETWEEN
THE CITY OF CHEYENNE, AND THE CITY OF CHEYENNE - LARAMIE COUNTY
JOINT POWERS BOARD**

1. **Parties.** The parties to this Amendment are the City of Cheyenne, a municipal corporation, duly organized and existing under the laws of the State of Wyoming, whose principal address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, "City", and the City of Cheyenne, Wyoming - Laramie County Joint Powers Board, a statutorily authorized entity organized and existing under the laws of the State of Wyoming, whose address is P.O. Box 2477, Cheyenne, Wyoming 82001, "JPB".

2. **Purpose of Amendment.** The purpose of this Amendment is to amend Paragraph number 7 of the Lease agreement between the parties dated March 9, 1992 as follows:

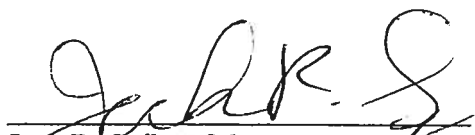
"All sanitation, water and sewer service will be paid by the JPB. The JPB's annual cost of water will be actual cost or \$5,000, whichever is less."

3. **Other Terms and Conditions Remain Unchanged.** All other terms and conditions of the original Lease remain unchanged and in full force and effect.

4. **Signatures.** In witness thereof, the parties to this Amendment, through their duly authorized representatives, have executed this Amendment on the dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Amendment.

The effective date of this Amendment is July 1, 2002.

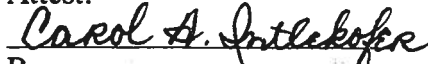
City of Cheyenne



Jack R. Spiker, Mayor

Date: 8-14-2002

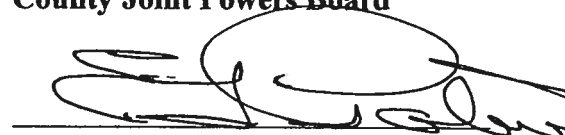
Attest:



By CAROL A. INTLEKOFER,
CITY CLERK

Date: 8-14-2002

**City of Cheyenne, Wyoming - Laramie
County Joint Powers Board**



By

Date: 3/31/2003

Attest:



By

Date: 8/21/03

Date: 7/16/02

**AMENDMENT NUMBER 1 TO THE LEASE BETWEEN
THE CITY OF CHEYENNE, WYOMING - LARAMIE COUNTY JOINT POWERS
BOARD AND CHEYENNE FRONTIER DAYS, INC.**

1. **Parties.** The parties to this Amendment are the City of Cheyenne, Wyoming - Laramie County Joint Powers Board, a statutorily authorized entity organized and existing under the laws of the State of Wyoming, whose address is P.O. Box 2477, Cheyenne, Wyoming 82001, "JPB", and Cheyenne Frontier Days, Inc., a Wyoming Non-Profit Corporation organized and existing under the laws of the State of Wyoming, "CFD", whose mailing address is 4610 Carey Avenue, Cheyenne, Wyoming 82001.

2. **Purpose of Amendment.** The purpose of this Amendment is to amend the Sub-Lease agreement between the parties dated August 10, 1992, to add Paragraph 1 A, as follows:

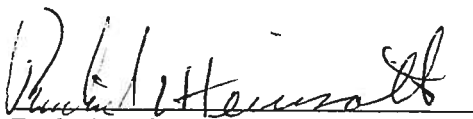
"All sanitation, water and sewer service will be paid by CFD. CFD's annual cost of water will be the actual cost or \$5,000, whichever is less."

3. **Other Terms and Conditions Remain Unchanged.** All other terms and conditions of the original Sub-Lease remain unchanged and in full force and effect.

4. **Signatures.** In witness thereof, the parties to this Amendment, through their duly authorized representatives, have executed this Amendment on the dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Amendment.

The effective date of this Amendment is July 1, 2002.

Cheyenne Frontier Days, Inc.

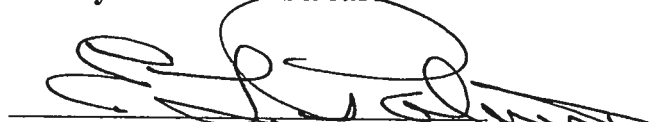

By its President

Date: 3.28.03

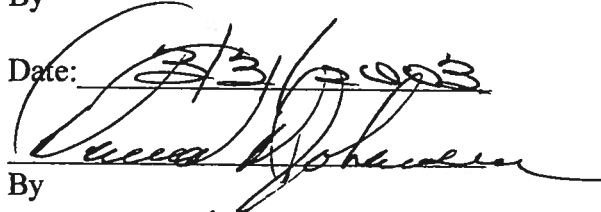
TIN: _____

Date: _____

**City of Cheyenne, Wyoming - Laramie
County Joint Powers Board**


By

Date: 7/3/2003


By

Date: 3/21/03

Attest:

Approved as to
form only:

Date: 9-22-18

AMENDMENT NO. 4 TO CITY CONTRACT NO. 2985

1. **Parties.** The parties to this Amendment are the City of Cheyenne, a municipal corporation, duly organized and existing under the laws of the State of Wyoming, whose principal address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("Lessor"), and the City of Cheyenne, Wyoming – Laramie County, State of Wyoming Joint Powers Board ("Lessee"), a statutorily authorized entity organized and existing under the laws of the State of Wyoming, whose address is P.O. Box 2477, Cheyenne, Wyoming 82001.

2. **Purpose of Amendment.** The purpose of this Amendment is to amend Paragraph 6, Use of Premises, contained in the Lease agreement between the parties dated March 9, 1992, to expressly allow, pursuant to provisions contained in Cheyenne City Code Chapter 5.12, the sale, dispensing and consumption of alcoholic liquor and malt beverages upon the leased premises by the Lessee or sub-lessee. Paragraph 6 of the Lease is hereby amended to add the following language at the end of said paragraph:

"Pursuant to provisions contained in Cheyenne City Code Chapter 5.12, Alcoholic Liquor and Malt Beverages, the sale, dispensing and consumption of alcoholic liquor and malt beverages upon the leased premises by the Lessee or sub-lessee shall be, and hereby is, expressly allowed by the Lessee or sub-lessee."

3. **Other Terms and Conditions Remain Unchanged.** All other terms and conditions of the original Lease, as amended, shall remain unchanged and in full force and effect.

4. **Signatures.** In witness thereof, the parties to this Amendment, through their duly authorized representatives, have executed this Amendment on the dates set forth below and certify that they have read, understand and agree to the terms and conditions of this Amendment. The effective date of this Amendment shall be the date of the signature last affixed to this Amendment.

Lessor: City of Cheyenne

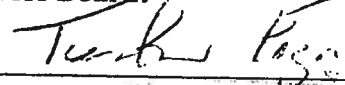

By: Marian J. Orr, Mayor

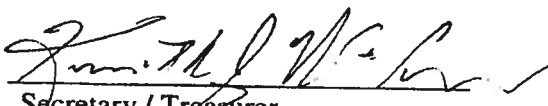
(S E A L)

Attest: 
Carol Intlekofer, City Clerk

Date: September 12, 2018

**Lessee: City of Cheyenne, Wyoming –
Laramie County State of Wyoming Joint
Powers Board:**


By: Tucker Fagan, Chairman

Attest: 
Secretary / Treasurer

Date: Sept 12, 2018